

24NNCV00903 24NNCV00903

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Case Number: 24NNCV00903 Hearing Date: July 2, 2026 Dept: X

#10 - JUDITH ROSARIOR CAVRERA PAGUAGA vs PAUL JOSEPH ZENAS, et al.

DEFENDANT'S MOTION TO TAX PLAINTIFF'S COSTS

On May 5, 2026, Plaintiff filed a verified memorandum of costs seeking total costs of \$133,306.18. The memorandum claimed, among other items, \$22,502.18 in deposition costs, \$56,700.00 in witness fees, \$16,383.44 in court reporter fees, \$25,762.11 in models/enlargements/photocopies of exhibits, and \$6,267.63 in other costs.

Defendant's motion to tax/strike costs is GRANTED IN PART. The Court taxes the following amounts:

Item 4: \$96.85

Item 8: \$56,700.00

Item 11: \$11,972.13

Item 13: \$17,561.16

Item 15: \$2,492.34

Total taxed: \$88,822.48. Costs are awarded to Plaintiff in the amount of \$44,483.70.

Item 4: Deposition costs

Defendant challenges \$2,650.10 in Item 4, consisting of video-recording charges for the depositions of Paul Joseph Zenas and Anthony Fenison, M.D., plus a \$96.85 transcript charge for a motion-to-compel hearing. Plaintiff submitted evidence that the Zenas and Fenison deposition videos were reasonably necessary for trial preparation, impeachment, and potential use at trial.

Under Code of Civil Procedure section 1033.5(a)(3)(A), necessary video-recorded depositions are allowable. Defendant has not shown that the video-recording charges should be taxed.

As to the \$96.85 charge for the motion-to-compel hearing transcript, section 1033.5(b)(5) disallows transcripts of court proceedings not ordered by the court. After reviewing the February 11, 2026 Minute Order, the Court determines that a motion hearing transcript was not court-ordered, so the Court will tax that amount. Item 4 is taxed in the amount of \$96.85.

Item 8: Witness fees

Plaintiff claims \$56,700.00 in witness fees. Defendant argues Plaintiff cannot recover expert fees because no experts were court-ordered, and Plaintiff did not obtain a more favorable judgment than either offer. Defendant shows that Plaintiff served section 998 offers of \$399,000 and \$499,000 and obtained a \$300,000 verdict. Code of Civil Procedure section 1033.5(a)(8) allows expert fees only when ordered by the court.

The opposition expressly states that Plaintiff does not currently oppose taxing Item 8 based on the present \$300,000 judgment, while asking that any ruling be without prejudice if later post-trial relief changes the judgment. Since the filing of the opposition, the Court denied Plaintiff's motion for new trial on June 26, 2026. This argument is now moot. Item 8 is taxed in the amount of \$56,700.00.

Item 11: Court reporter fees

Code of Civil Procedure section 1033.5(b)(5) disallows transcripts of court proceedings not ordered by the court, and the papers do not show a court order for transcript copies. Item 11 is taxed in the amount of \$11,972.13, for the amount associated with copies of transcripts, as opposed to the actual reporter.

Item 13: Models, enlargements, photocopies, and electronic presentation of exhibits

Plaintiff claims \$25,762.11 for MediVisuals (\$3,950.28) Summit (\$4,250.67), and RackiCo (\$17,561.16). Plaintiff's opposition describes those charges as medical illustrations, exhibit preparation and electronic formatting, and courtroom presentation support and equipment used during trial preparation and trial.

Code of Civil Procedure section 1033.5(a)(13) permits

exhibit-related costs that were reasonably helpful to aid the trier of fact. *Segal v. ASICS Am. Corp.* (2022) 12 Cal.5th 651, 668, recognizes that even some unused exhibit-related costs may be allowed in the court's discretion.

The reply suggests that lower-tech alternatives could have been used. The Court determines that the charges for MediVisuals and Summit were not unreasonable or unnecessary. The motion is denied as to these two items, but granted as to RackiCo. The total taxed for this item is \$17,561.16.

Item 15: Other costs

Defendant challenges \$2,999.47 in Item 15. Plaintiff expressly does not oppose taxation of \$43.55 in postage, \$25.88 for a skip trace charge, and \$1,822.91 for SH Car Service. (Opp., p. 11.) Those amounts will be taxed.

Defendant also challenges a \$600.00 mediation charge. Defendant submitted that the signed mediation agreement stated that the mediation fee was divided equally among the parties unless otherwise agreed upon. That is the kind of cost-sharing language *Anthony v. Xiaobin Li* (2020) 47 Cal.App.5th 816, treats as enforceable as written absent a term preserving later prevailing-party recovery. The \$600.00 mediation charge is taxed.

The remaining challenged amounts are the witness-statement transcript charge and messenger/drop-service charges. Plaintiff presents those items as case-specific trial-preparation and service-related expenses. Under Code of Civil Procedure section 1033.5(c)(4), the Court exercises its discretion to allow those remaining challenged charges.

Item 15 is taxed in the total amount of \$2,492.34 and otherwise allowed.

Moving Party is to give notice.